

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

Application no. 11612/06
Gennadiy Vasylyovych DEMCHUK
against Ukraine

The European Court of Human Rights (Fifth Section), sitting on 11 December 2012 as a Committee composed of:

Angelika Nußberger, *President,*
André Potocki,
Aleš Pejchal, *judges,*
and Stephen Phillips, *Deputy Section Registrar,*

Having regard to the above application lodged on 28 February 2006,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Gennadiy Vasylyovych Demchuk, is a Ukrainian national, who was born in 1943 and lives in Mykolayivka, Dnipropetrovsk region.

The Ukrainian Government ("the Government") were represented by their Agent, Mr Nazar Kulchytskyy, of the Ministry of Justice.

The applicant complained under Articles 3, 5, 6, 7, 10, 11, 13 and 14 of the Convention and Article 1 of Protocol No. 1 mainly about police ill-treatment and ineffective investigation into it, lack of medical assistance in detention, unlawful arrest and unfairness of administrative proceedings.

The applicant's complaints concerning police ill-treatment and ineffective investigation into it were communicated to the Government. The applicant was invited to designate a lawyer and submit the authority form in

accordance with Rule 36 §§ 2 and 4 of the Rules of the Court. However, no reply was received to the Registry's letter.

By letter dated 9 March 2012, sent by registered post, the applicant was notified that the period allowed for submission of the completed authority form had expired on 17 November 2011 and that no extension of time had been requested. The applicant's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicant's wife received this letter on 23 March 2012. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

Stephen Phillips
Deputy Registrar

Angelika Nußberger
President